SUMMONS

(PROTECTIVE ORDERS)

IN THE STATE OF ILLINOIS, CIRCUIT COURT

☐ **Alias Summons**

Check if this is not the 1st Summons issued for this Respondent.

COUNTY: _____

County Where You Are Filing the Case

Enter the case information as it appears on your other court documents.

PETITIONER: _____

Who started the case. *First, Middle, and Last Name*

Filing on behalf of a ☐ minor or ☐ high-risk adult: _____

RESPONDENT: _____

Who you are seeking protection from. *First, Middle, and Last Name*

_____

Case Number

- A case has been filed against you. Read all of the documents attached to this Summons.
- To participate in the case, you must follow the instructions listed below. Also see page 3 for next steps.
- You **must attend court** on the date in this Summons. If you do not attend that date or on any subsequent hearing date agreed to by the parties or set by the court, the judge may decide the case without hearing from you. This is called "default."
- All documents referred to in this Summons can be found at ilcourts.info/forms. Other documents may be available from your local Circuit Court Clerk's office or website.

1. Petitioner has filed against you for the following:

☐ Order of Protection ☐ Stalking No Contact Order

☐ Civil No Contact Order ☐ Other: _____

2. Instructions for person receiving this form (Respondent):

Your court date is listed below. Information about getting a court date and how to attend is available from the Circuit Clerk. You can find their contact information at ilcourts.info/clerks.

☐ Go to court on the date in the attached Order.

☐ Go to court in one of the ways checked below on:

_____ at _____ ☐ a.m. ☐ p.m. in _____.

Month, Day, Year *Time* *Courtroom Number*

Court dates may be in-person, remote, or a combination of in-person and remote.

☐ **In person** at: _____

Courtroom Address *Courtroom Number*

☐ **Remotely** (video or telephone)

By video conference at: _____

Video Conference Website

Log-in information: _____

Video Conference Log-in Information, Meeting ID, Password, etc.

By telephone at: _____

Call-in Number for Telephone Remote Appearance

To find out more about remote court options:

Phone: _____ or Website: _____

Circuit Clerk's Phone Number *Website URL*

3. RESPONDENT'S INFORMATION

a. Respondent's **primary address/information** for service:

Name: _____
First, Middle, and Last Name, or Business Name

Street Address: _____
Street, Apt #

City, State, ZIP: _____
City *State* *Zip*

Telephone: _____ Email: _____

b. **Second address** for this Respondent:

☐ I do **not** have another address where the Respondent might be found.
☐ I have another address where this Respondent might be found. It is:

Street Address: _____
Street, Apt #

City, State, ZIP: _____
City *State* *Zip*

Telephone: _____ Email: _____

c. Person who will serve your documents on this Respondent:

☐ Sheriff in Illinois ☐ Special process server ☐ Licensed private detective

☐ Sheriff outside Illinois: _____
County & State

PETITIONER INFORMATION FOR NOTICE PURPOSES:

Enter your complete address, telephone number, and email address if you have one. If you need to keep your addresses secret because of domestic violence, you may use another address. Those addresses must be ones at which you can receive mail about the case.

Name: _____
First, Middle and Last Name

Street Address: _____
Street, Apt #

City, State, ZIP: _____
City *State* *Zip*

Telephone: _____ Email: _____

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

STOP The Circuit Clerk and officer or process server will fill in this section.

To be filled in by the Circuit Clerk:

Witness this Date: _____ *Seal of Court*

Clerk of the Court: _____

To be filled in by an officer or process server:

Date of Service: _____

Fill in the date above and give this copy of the Summons to the person served.

Note to officer or process server:

- Complete the attached *Proof of Service* form and file it with the court or return it to the Petitioner.

Case Number _____

WHAT'S NEXT

NEXT STEPS FOR PERSON FILLING OUT THIS FORM:

When you file a case, you must notify the Respondent of the court case by having the *Summons* and *Petition for Order of Protection* delivered to them. This is called "serving" them.

File your *Summons* and *Petition* with the Circuit Clerk in the county where your court case should be filed. The Circuit Clerk will "issue" the *Summons* by putting a court seal on the form.

Have the sheriff or a private process server serve the *Summons* and a copy of the *Petition* and *Order* (if entered) on the Respondent. You cannot serve the *Summons* yourself.

Learn more about each step in the process and how to file in the instructions: ilcourts.info/OP-summons-instructions.

NEXT STEPS FOR PERSON RECEIVING THIS DOCUMENT:

A case has been filed against you:

- Read all documents attached to this *Summons*.
- All documents referred to in this *Summons* can be found at ilcourts.info/forms. Other documents may be available from your local Circuit Court Clerk's office or website.
- Within 7 days of receiving this Summons you must file a document called an *Appearance*. If you do not file required court documents on time, the judge may decide the case without hearing from you. This is called "default." As a result, you could lose the case and a protective order could be entered against you. You do not have to file a document called an Answer/Response in a protective order case unless ordered to by the judge.
- After you fill out the necessary documents, you need to electronically file (e-file) them with the court. To e-file, you must create an account with an e-filing service provider. For more information, go to ilcourts.info/efiling. If you cannot e-file, you can get an exemption that allows you to file in-person or by mail.
- You may be charged filing fees, but if you cannot pay them, you can file an *Application for Waiver of Court Fees (Civil)*.
- When you go to court, it is possible that the court will allow you to attend the first court date in this case in-person or remotely by video or phone. Contact the Circuit Court Clerk's office or visit the Court's website to find out whether this is possible and, if so, how to do this.

Need Help? ¿Necesita ayuda?

- Call or text Illinois Court Help at 833-411-1121 or go to ilcourthelp.gov for information about going to court, including how to fill out and file documents.
- Llame o envíe un mensaje de texto a Illinois Court Help al 833-411-1121, o visite ilcourthelp.gov para obtener información sobre los casos de la corte y cómo completar y presentar formularios.
- You can also get free legal information and legal referrals at illinoislegalaid.org.
- If there are any words or terms that you do not understand, please **visit Illinois Legal Aid Online** at ilao.info/glossary. You may also find more information, resources, and the location of your local legal self-help center at: ilao.info/lshc-directory.

PROOF OF SERVICE OF SUMMONS FOR PROTECTIVE ORDERS

IN THE STATE OF ILLINOIS, CIRCUIT COURT

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COUNTY: _____

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PETITIONER: _____

Who started the case. *First, Middle, and Last Name*

Filing on behalf of a ☐ minor or ☐ high-risk adult: _____

RESPONDENT: _____

Who you are seeking protection from. *First, Middle, and Last Name*

_____

Case Number

STOP Do not complete the rest of the form. **The sheriff or special process server will fill in the form.**

My name is _____ and I state:

Officer/Process Server First, Middle, Last Name

SERVICE INFORMATION

Respondent: _____

First, Middle, Last Name

☐ I was not able to serve the *Summons, Petition,* and *Orders* issued in this case on the Respondent named above.

- or -

☐ I served the *Summons, Petition* and *Orders* issued in this case on the Respondent named above as follows:

☐ **Personally** on the Respondent:

☐ Male ☐ Female ☐ Non-Binary Approx. Age: _____ Race: _____

On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.

Address, Unit#: _____

City, State, ZIP: _____

☐ On **someone else at the Respondent's home** who is at least 13 years old and is a family member or lives there:

Name of person served: _____

First, Middle, Last Name

☐ Male ☐ Female ☐ Non-Binary Approx. Age: _____ Race: _____

On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.

Address, Unit#: _____

City, State, ZIP: _____

and by sending a copy to this Respondent in a postage-paid, sealed envelope to the above address on this date: _____.

SERVICE ATTEMPTS

I made the following attempts to serve the *Summons* and Petition on the Respondent:

First Attempt: On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.

Address, Unit#: _____

City, State, ZIP: _____

Other information about service attempt:

_____

_____

_____

Second Attempt: On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.

Address, Unit#: _____

City, State, ZIP: _____

Other information about service attempt:

_____

_____

_____

Third Attempt: On this date: _____ at this time: _____ ☐ a.m. ☐ p.m.

Address, Unit#: _____

City, State, ZIP: _____

Other information about service attempt:

_____

_____

_____

SIGN

I certify under 735 ILCS 5/1-109 that:

1) everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this document is perjury and has penalties provided by law.

Your Signature /s/_____ Print Your Name _____

You are: ☐ Sheriff in Illinois ☐ Special process server

☐ Sheriff outside Illinois: _____ ☐ Licensed private detective, license number: _____

County and State *License number*

FEES:

Service and Return: $_____ Miles: $_____ Total: $_____